

**Court No. - 3**

**Case :-** WRIT - C No. - 34508 of 2022

**Petitioner :-** Dharmendra Kumar Tripathi

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Rajan Tripathi

**Counsel for Respondent :-** C.S.C., Anubhav Singh

**Hon'ble Surya Prakash Kesarwani, J.**

**Hon'ble Rajendra Kumar-IV, J.**

Heard learned counsel for the petitioner and the learned standing counsel for the respondents no. 1 and 2. None appears for the respondent no. 3.

This writ petition has been filed praying for the following relief:

"(i) a writ, order or direction in the nature of MANDAMUS commanding and directing the respondent no 2 and 3 to provide a new/separate electricity connection to the petitioner's partitioned ancestral house i.e. 35/71, Bangali Mohal, Kanpur Nagar within stipulated period.

(ii) Issue any other writ, order or direction, which this Hon'ble Court may deem, just and proper in the circumstances of the case."

Learned standing counsel submits that the petitioner may make an appropriate application before the respondent no. 3 for electricity connection which shall be considered and appropriate orders shall be passed in accordance with law.

In view of the aforesaid and without expressing any opinion on the merits of the case of the petitioner, the writ petition is **disposed of** giving liberty to the petitioner to move an appropriate application alongwith certified copy of this order before the respondent no. 3-Chief Executive Engineer, KESKO, Kanpur Nagar for electricity connection complying the requirement under the U.P. Electricity Supply Code, 2005, within four week from today. In the event, such an application is submitted within the stipulated period, the respondent no. 3 or the Competent Authority shall pass appropriate orders on the application of the petitioner in accordance with law, expeditiously preferably within next four weeks.

**Order Date :-** 8.12.2022

o.k.